TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 29, 2018
MINUTES

Present: Joseph Belton, vice-chair, David Rubin, Barry Wolff, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Michael Robertson, Julia Copeland, Lynnette Lynes

Mr. Belton called the meeting to order at 6:00 pm and introduced Mr. David Rubin as the newest Board member. He reviewed the procedures with the public.

1. Approval of Minutes

▶ *Mr. Wolff moved for approval of the minutes. Mr. Cowden seconded the motion. All in favor.*

▶ *Mr. Wolff moved for approval of the agenda. Mr. Cowden seconded the motion. All in favor.*

2. Public Comment & General Correspondence

There being no comments, Mr. Belton continued with the agenda.

Mr. Belton administered the oath to those speaking.

3. Business Staff Report

A. V-1-18, 361 Cooper River Drive, TMS 514-00-00-406, Appeal from the strict application of Eastport Village Planned Development Ordinance 02069, R-0203 and §156.007 DEFINITIONS, BUILDING HEIGHT, and §156.102 HEIGHT AND SIZE OF BUILDINGS/STRUCTURES to allow a rooftop pergola above the 80 foot height limit.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Daniel Easterling, applicant, reviewed the request with the Board. He stated that there are other pergolas on the building and distributed pictures for the Board to review.

Mr. George Gates, 239 Cooper River Drive, stated that he lives in the building. He suggested that approval of the variance would set a bad precedent. He

stated that just as the recent Medal of Honor museum height request was denied because it exceeded the maximum height, this request should be denied as well. He stated that in researching the HOA Board, he has not found any evidence that the pergola received approval. He stated that the other pergola is smaller in size than the one being requested. He suggested that the pergola will be seen from the street. He expressed concern with the roof being penetrated to secure the pergola and that this could cause water damage. He expressed concern with large equipment needed to secure the pergola on the roof.

Mr. Evan Smith, 239 Cooper River Drive, stated that he is opposed to the request. He suggested that the pergola would affect the architectural integrity of the building. He suggested that the requested pergola did not receive approval from HOA. He stated that in reviewing minutes on the website, there is no record that this came before the Board for a variance. He asked that the request be denied.

Mr. Robertson reviewed the correspondence received regarding this item (attachment 2).

Mr. Belton closed public comment.

Mr. Belton asked about the building height. Mr. Robertson reviewed how building height was measured under the previous ordinance with the Board.

Mr. Wolff asked if the building exceeds the height. Mr. Robertson answered in the affirmative.

- *Mr. Wolff moved for denial of the request based on the staff report and that criteria C has not been met. Mr. Belton seconded the motion. All in favor.*

B. V-2-18, 311 Venning Street, TMS 532-01-00-264, Appeal from the strict application of §156.313 (E)(3) Building area ratio (BAR) requirement to allow an increase in the BAR from 65% to 68.5%.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Julie O'Connor, architect, reviewed the request with the Board. She stated that the immediate four adjacent neighbors are in favor of the request.

Mr. Chauncey Clark, owner, stated that all of his neighbors are in support of the request.

There being no comment, Mr. Belton closed the public hearing.

Mr. Wolff asked if the request would be used for an ADU. Ms. O'Connor answered that it would be a loft over the garage that could be used as an ADU. She stated that it would be used as a "kick out room" for the children. She stated that it could be used as an ADU in the future. Mr. Wolff asked if an Air BNB would be allowed. Mr. Robertson answered in the affirmative.

Mr. Belton asked about the construction. Ms. O'Connor answered that the roofline would be increased approximately 4 ½ feet with dormers added.

Mr. Wolff asked if zoned differently, would they be allowed the additional building area ratio (BAR). Mr. Robertson answered that the BAR would be 50% to a maximum of 5500 square feet.

Mr. Belton asked if the BAR would apply to this request as it would not increase the footprint. Mr. Robertson answered that because the roof is being raised, the BAR would apply.

Mr. Wolff suggested that there is no justification for increasing the BAR as the property use is not prohibited.

Mr. Belton suggested that the intent of the Old Village Historic District (OVHD) should be taken into consideration. He stated that the guidelines of the OVHD were established to protect, preserve and enhance architecture of the OVHD. He stated that it promotes the economic and general welfare of the OVHD. He stated that the architecture would be consistent with other buildings in the OVHD. He stated that the request would not be a detriment to the character of the neighborhood. He suggested that the requested revisions would enhance the property and would not be a detriment to the neighborhood.

Mr. Duke asked if the intent of the OVHD would meet the variance criteria. Mr. Belton answered in the affirmative and suggested that the hardship is that the property is non-conforming, it is in the special overlay district, etc. He suggested that it is appropriate to grant the variance.

Mr. Cowden state that he reviewed the property and suggested that the hardship is that the adherence of the ordinance is hindering the use of the property.

- *Mr. Cowden moved for approval of the variance based on the findings that applying the ordinance would unreasonably restrict the use of the property. Mr. Rubin seconded the motion. Motion passed on a 4 to 3 vote with Mr. Rubin, Mr. Cowden, Mr. Belton, and Mr. Duke in favor; Mr. Wolff, Mr. Carrier and Mr. Wood opposed.*

C. S-1-18, 1013 Country Store Road, TMS 559-00-00-020, Request for Special Exception in accordance with Section 156.326 (C)(5)(n) Outdoor storage and/or display and Section 156.411 (A)(3) to allow outdoor storage and display of motor vehicles.

- *Mr. Wolff moved for approval of the special exception. Mr. Cowden seconded the motion. All in favor.*

D. V-3-18, 1013 Country Store Road, TMS 559-00-00-020, Appeal from the strict application of Section 156.173 AREA AND PAVING REQUIREMENTS to allow tandem vehicle parking.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. David Stevens reviewed the request with the Board.

Mr. Cowden asked what buffers are proposed. Mr. Stevens reviewed the buffers on the site plan with the Board. He stated that they should be ten feet on the rear and 5 feet on the side.

Mr. Wolff asked is the parking spaces would be paved. Mr. Stevens answered in the affirmative and stated that paving would reduce the dust. He stated that they have underground storage for any runoff.

There being no comments, Mr. Belton closed public comment.

▶ *Mr. Wolff moved for approval of the variance based on findings in the staff report. Mr. Belton seconded the motion. All in favor.*

4. Approval of Final Orders

The Board signed final orders.

5. Re-adoption of Bylaws

▶ *Mr. Wolff moved for approval of the bylaws as presented. Mr. Duke seconded the motion. All in favor.*

6. Election of Officers

The Board elected Mr. Belton as chair and Mr. Wolff as vice-chair through secret ballot.

There being no further business, the meeting adjourned at 7:07 pm.

Submitted by,
L. Lynes
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